

CONSENT TO COMMENCE SERVICE PROVISION

and acceptance of Check It Out paid subscription terms

You are upgrading to a paid plan — great! Before we activate your subscription, please review this document. It contains the subscription terms and the consents required to immediately activate the service.

This document is an integral part of the agreement for the provision of electronic services between you and Check It Out sp. z o.o., registered at ul. Białowieska 89/24, 54-234 Wrocław, Poland, Tax ID (NIP): 8943264018, KRS: 0001181981 (hereinafter: the Service Provider). It applies to all entities using the service — regardless of legal form.

§ 1. Subscription terms

So you know exactly what you are paying for and how it works — short and clear:

Monthly billing. The subscription is billed in monthly cycles. Payment is collected at the beginning of each period and covers a full month of access to the service.

Cancel anytime. You can cancel your subscription at any time, directly from your account dashboard. We will not charge any additional cancellation fee.

Access until the end of the paid period. After cancellation, your account remains fully active until the end of the paid month. You continue using the service as normal — nothing changes until the last day.

No prorated refunds. If you cancel mid-month, we do not refund the remaining days. The fee covers the entire billing period.

Automatic renewal. The subscription renews automatically for subsequent monthly periods until you cancel it. Before each renewal, we charge the fee in accordance with the current pricing. After cancellation, the next period will not be charged.

In short: you purchase one month of access. The subscription renews automatically each month. Cancel anytime — after cancellation, your account works until the end of the paid period, but we do not refund unused days. The next month will not be charged.

§ 2. Consent to immediate commencement of service provision

Check It Out is an online platform available in the SaaS model — a digital service provided electronically. In accordance with the Polish Act of 30 May 2014 on Consumer Rights, we require your explicit consent before immediately activating paid access.

By accepting this document, you confirm that:

- 1.** You request immediate commencement of the service — you want to gain full access to the Check It Out paid plan immediately after payment, i.e. before the expiry of the 14-day withdrawal period.
- 2.** You acknowledge that upon activation of the paid plan and gaining access to it, you will lose the right to withdraw from the contract without giving a reason, in accordance with:
 - Art. 38(1)(1) of the Polish Consumer Rights Act (service fully performed with the consumer's express and prior consent),
 - Art. 38(1)(13) of the Polish Consumer Rights Act (digital content not supplied on a tangible medium, delivered with the consumer's express and prior consent).
- 3.** You have read the subscription terms (§ 1) and the pricing change policy (§ 4) described in this document and you accept them in full.

What does this mean in practice? After giving these consents and making payment, your paid plan is activated immediately. From that moment, you cannot withdraw from the contract without giving a reason — but you can cancel your subscription at any time. Your account will remain active until the end of the paid month.

§ 3. What if I don't give consent?

No problem. If you do not accept the above:

- a) Your subscription will be paid for, but access to the paid plan will be activated only after 14 days from the date of payment.
- b) Within those 14 days, you may withdraw from the contract without giving a reason — in which case we will refund you in full.
- c) After 14 days, if you have not withdrawn, the paid plan will be activated automatically and the terms from § 1 will apply.
- d) During the waiting period, your account continues to operate under its current terms (free plan / trial).

Your choice: consent = immediate access to the paid plan (no withdrawal right). No consent = 14-day wait (with the right to withdraw and receive a full refund during that time). In both cases, your account is safe.

§ 4. Pricing changes

Check It Out pricing may change. Here is how that process works:

- a) We will notify you of any planned pricing change by email at least 30 days in advance before the change takes effect.
- b) The new pricing takes effect from the next billing period — never during an already paid month.
- c) The new price requires your active acceptance. After logging in, you will see a prompt with the new price and a request to confirm. We never charge a higher fee automatically.
- d) You have 38 days to accept the new terms (30 statutory days + 7 days for session). If you do not accept the new pricing within this time, your account will be switched to a free plan.
- e) After switching to the free plan, you retain full access to all your existing data. Nothing is lost, nothing is deleted.
- f) You can return to the paid plan at any time — simply accept the current pricing.

In short: prices may change, but we will always notify you 30 days in advance. The new price requires your conscious consent — without it, we will not charge a higher amount. If you do not accept, your account switches to the free plan with access to your data.

§ 5. Confirmation on a durable medium

After giving your consent and making payment, we will send you an email containing:

- a) confirmation of the subscription agreement (plan, price, billing period),
- b) confirmation of receipt of your consent for immediate commencement of the service,
- c) information about the loss of the right to withdraw from the contract,
- d) subscription terms (§ 1) and pricing change policy (§ 4).

The email constitutes a durable medium within the meaning of Art. 2(4) of the Polish Consumer Rights Act and satisfies the requirements of Art. 15(1)(2) and Art. 21(1) of that Act.

§ 6. Consent registration

At the moment of acceptance, we record technical data confirming that the consent was given knowingly and by the account owner:

Parameter	Description	Purpose
IP Address	Device IP at the moment of acceptance	Session identification
User-Agent	Browser and operating system	Environment verification
Event.isTrusted	Whether the action was triggered by a user (not a script)	Bot protection
Timestamp (UTC)	Exact date and time of acceptance	Consent timestamp

Consent is automatically linked to your account (User ID) at the moment of acceptance. Data is processed on the basis of Art. 6(1)(f) GDPR (legitimate interest of the controller — evidential safeguard). Retained for the duration

of the agreement plus 3 years after its termination (Art. 118 of the Polish Civil Code).

§ 7. Legal basis

1. Art. 38(1)(1) of the Polish Act of 30 May 2014 on Consumer Rights — no right of withdrawal after the service has been fully performed with the consumer's express consent.
2. Art. 38(1)(13) of the Consumer Rights Act — no right of withdrawal for digital content not supplied on a tangible medium, delivered with the consumer's express consent.
3. Art. 15(1)–(3) and Art. 21(1)–(2) of the Consumer Rights Act — requirement of express consent for commencement of service provision before the expiry of the withdrawal period and the obligation to confirm on a durable medium.
4. Art. 384¹ of the Polish Civil Code — amendment of a standard contract in ongoing relationships (pricing change mechanism per § 4).
5. Art. 8 of the Polish Act of 18 July 2002 on Electronic Service Provision — terms of service for electronically provided services.

Acceptance is made by checking the checkbox “I have read the subscription terms and consent to immediate commencement of service provision” and clicking the “Activate subscription” button.

Document version:	1.0
Service Provider:	Check It Out sp. z o.o., Tax ID (NIP): 8943264018, KRS: 0001181981, ul. Białowieska 89/24, 54-234 Wrocław, Poland